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[TENTATIVE] ORDER SUSTAINING DEFENDANT

LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY'S DEMURRER

I. INTRODUCTION

Plaintiff

Renni King ("Plaintiff") filed this action on April 1, 2026, against Defendants Los Angeles County Metropolitan Transportation Authority ("Metro"), City of Pasadena, County of Los Angeles, State of California, California Department of Transportation and Does 1 through 50, inclusive. Plaintiff alleges causes of action for (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligence, (5) negligent hiring, supervision, and retention, and (6) dangerous condition of public property, arising from an alleged assault on Plaintiff while aboard a Metro train at the Memorial Park Station in Pasadena.

On May 15, 2026, Metro filed the instant demurrer to the fourth, fifth, and sixth causes of action. On May 21, 2026, Plaintiff dismissed the City of Pasadena, County of Los Angeles, State of California, and Caltrans from the action. Plaintiff filed an opposition to Metro's demurrer on August 10, 2026, and Metro filed a reply on August 14, 2026.

Meet and confer

Pursuant to Code of Civil Procedure

section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer.

Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Here, Metro's counsel declares that they met and conferred with Plaintiffs' counsel. (Yehoshua Decl., ¶ 2.) Thus, the requirement is met.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (Id.) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (People v. Lim

(1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. ANALYSIS

Defendant

Metro demurs to Plaintiff’s Complaint pursuant to Code of Civil Procedure section 430.10, arguing that the Complaint is uncertain and fails to state sufficient facts to constitute a cause of action. Metro challenges the fourth cause of action for negligence, fifth cause of action for negligent hiring, supervision, and retention, and sixth cause of action for dangerous condition of public property. Metro also argues that the negligence claim is barred by Government Code section 845. (Notice, p. 3.) The Court addresses each argument in turn.

Fourth cause of action: Negligence

To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages or injuries. (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.)

Here, Metro argues that Plaintiff fails to allege a statutory basis for imposing liability against it as a public entity. Metro further argues that Plaintiff’s negligence claim is based on Metro’s alleged failure to protect Plaintiff from a third-party assault and is

therefore barred by Government Code section 845, which provides public entities immunity for failing to provide sufficient police protection. (Demurrer, pp. 7-8.)

In opposition, Plaintiff argues that the Complaint alleges sufficient facts to state a cause of action for negligence. Specifically, Plaintiff contends that paragraphs 38 and 39 allege a special relationship giving rise to a duty to take reasonable steps to protect passengers aboard the train, and paragraph 44 alleges that Metro is vicariously liable under Government Code section 815.2 for the acts and omissions of its employees. Plaintiff further argues that, as a common carrier, Metro owed Plaintiff a heightened duty of care under Civil Code section 2100. (Opposition, p. 4.)

In reply, Metro argues that Plaintiff's reliance on Lopez is misplaced because the Complaint alleges that the assault occurred "suddenly and without warning" and does not allege that any Metro employee had notice of an impending assault or an opportunity to intervene. Metro further argues that Plaintiff's reliance on Civil Code section 2100 and a common-carrier theory is raised for the first time in opposition and is not alleged in the Complaint. (Reply, pp. 4, 6.)

The Court finds that Plaintiff has not sufficiently alleged a cause of action for negligence against Metro. Although Plaintiff relies on Government Code section 815.2 and argues that Metro's employees owed him a duty arising from Metro's status as a common carrier, the Complaint does not allege facts showing that any Metro employee knew or should have known of an impending assault and had an opportunity to take reasonable steps to protect Plaintiff. Rather, the Complaint alleges that the assailants "suddenly and without warning" attacked Plaintiff. Thus, as presently pleaded, the allegations do not establish that any Metro employee had notice of the danger before the assault or an opportunity to intervene

Moreover, to the extent Plaintiff's negligence claim is based on Metro's alleged failure to provide adequate security or police protection generally, such a claim is barred by Government Code section 845.

Thus, the Court SUSTAINS Metro's demurrer to the fourth cause of action, with 20 days' leave to amend.

Fifth cause of action: Negligent hiring, supervision and retention

“[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm occurs. (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902; Doe, supra, 50 Cal.App.4th at 1054.)

Here, Metro argues that Plaintiff cannot maintain a direct claim for negligent hiring, supervision, or retention against a public entity because there is no statutory basis for such liability. Metro also argues that Plaintiff fails to allege facts showing Metro knew or should have known that any employee was unfit. (Demurrer, pp. 9-10.)

In opposition, Plaintiff argues that the Complaint sufficiently alleges that Metro knew or should have known that Does 6 through 10 were incompetent and unfit and that their incompetence created a particular risk to Plaintiff. (Opposition, pp. 4-5.)

In reply, Metro argues that the Complaint merely alleges that Metro “knew or should have known” its employees were unfit, without alleging any facts showing prior incidents, reports, or other basis for Metro’s knowledge. (Reply, pp. 4-5.)

The Court agrees with Metro.

Plaintiff fails to state a cause of action for negligent hiring, supervision, and retention against Metro. As discussed above, section 815.2 provides for vicarious liability based on an employee’s acts or omissions; it does not provide a statutory basis for direct liability against Metro for negligent hiring, supervision, or retention. Because Plaintiff has not identified any additional facts or statutory basis that could cure this defect, the Court SUSTAINS the demurrer to the fifth cause of action without leave to amend.

Sixth cause of action: dangerous condition of public property

California Government Code section

835 provides that “a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) [a] negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) [t]he public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Govt. Code, § 835.) Section 830 provides that “‘dangerous condition’ means a condition of property that creates a substantial . . . risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Id., § 830(a).) “[A] claim alleging a dangerous condition may not rely on generalized allegations [citation] but must specify in what manner the condition constituted a dangerous condition.” (Brenner v. City of El Cajon (2003) 113 Cal.App.4th 434, 439.)

Metro argues that although

Plaintiff references Government Code section 835, the Complaint alleges no facts demonstrating a dangerous condition of public property. Metro relies on Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112 for the proposition that a dangerous condition requires a physical condition of the property that increased or intensified the risk of injury and a causal connection between that condition and the third party's conduct. (Demurrer, pp. 10-11.)

In opposition, Plaintiff argues

that the Complaint sufficiently identifies the alleged dangerous conditions, including Metro's failure to reasonably inspect the premises and its negligent design, construction, maintenance, management, and control of the premises. Plaintiff further alleges that Metro created the dangerous conditions or had actual or constructive notice of them in sufficient time to take protective measures. (Opposition, pp. 6-7.)

In reply, Metro argues that

Plaintiff merely alleges general conclusions and fails to identify any physical feature of the Memorial Park Station platform or train that increased the risk

of the assault or was causally connected to the assailants' conduct. (Reply, pp. 5-6.)

The Court agrees with Metro. The Complaint does not identify any physical condition of the property that created or increased the risk of Plaintiff's assault. Rather, Plaintiff alleges generally that Metro designed, constructed, owned, operated, maintained, managed, and/or controlled the premises, and did so negligently. (Complaint, ¶¶ 57-58.) These conclusory allegations are insufficient to establish a dangerous condition of public property under Government Code section 835.

Thus, the Court SUSTAINS Metro's demurrer to the sixth cause of action, with 20 days' leave to amend.

Uncertainty

Metro also demurs on the ground of uncertainty pursuant to Code of Civil Procedure section 430.10, subdivision (f). A demurrer for uncertainty is disfavored and will be sustained only where the pleading is so uncertain that the defendant cannot reasonably respond, i.e., the defendant cannot reasonably determine what issues must be admitted or denied or what claims are directed against it. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Ambiguities that can reasonably be clarified through discovery generally do not support a demurrer for uncertainty. (*Ibid.*)

The Court does not find the Complaint sufficiently uncertain to warrant sustaining the demurrer on this ground.

IV. ORDER

The Court SUSTAINS Metro's demurrer to the fourth and sixth causes of action, with 20 days' leave to amend, and SUSTAINS the demurrer to the fifth cause of action, without leave to amend.

Defendants are to give notice.

Dated: August 21, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT